

**BEFORE THE FEDERAL MARITIME COMMISSION
OFFICE OF ADMINISTRATIVE LAW JUDGES
WASHINGTON, D.C.**

DOCKET NO. 25-24

SOUTHERN INTERNATIONAL CO., LTD.,

Complainant,

v.

DAYNAMEZ GROUP OF COMPANIES LLC,

Respondent.

**COMPLAINANT SOUTHERN INTERNATIONAL CO., LTD.'S MOTION
FOR LEAVE TO FILE A LIMITED REPLY TO RESPONDENT'S JULY
20, 2026 RESPONSE TO MOTION TO COMPEL**

Complainant Southern International Co., Ltd. ("SIC"), appearing through its Director and authorized corporate representative, respectfully moves under 46 C.F.R. §§ 502.69 and 502.71(a) and (c) for leave to file the attached *Complainant Southern International Co., Ltd.'s Limited Reply in Support of Motion to Compel Verified Supplemental Discovery Responses and Complete Document Production* ("Proposed Limited Reply"), submitted with this Motion as Exhibit A.

Extraordinary circumstances warrant leave because Respondent Daynamez Group of Companies LLC's ("Daynamez") July 20, 2026 filing did substantially more than oppose SIC's pending Motion to Compel. It placed before the Presiding Officer, for the first time in their present form, consolidated and verified interrogatory answers, an amended response to Request for Admission No. 12, restated supplemental responses to multiple Requests for Production, additional financial schedules, and documentary exhibits. Daynamez relies on those post-motion materials to argue that the remaining deficiencies identified in SIC's Motion have been cured or otherwise no longer warrant relief. Because those consolidated, verified, amended, and supplemented materials were served only after SIC filed its Motion, SIC had no opportunity in its opening papers to address their asserted curative effect, their internal inconsistencies, or the discovery gaps that remain.

The Proposed Limited Reply is confined to the effect of the July 20 supplementation. It identifies matters that appear to have been cured, explains material issues that remain unresolved, and clarifies the limited compliance relief SIC continues to request. It does not repeat the opening Motion, enlarge SIC's discovery requests, present a new merits

theory, seek a finding that any document was fabricated or altered, or request terminating sanctions.

I. COMPLIANCE WITH RULE 502.71(a)

1. On July 23, 2026, SIC emailed Daynamez's counsel to identify this anticipated Motion for Leave, describe the limited scope of the proposed reply, determine whether Daynamez opposed the requested relief, and ask whether any opposition could be narrowed. SIC requested Daynamez's position by 2:00 a.m. Eastern Time on July 24, 2026. SIC's July 23 email and Daynamez's subsequent response are submitted together as Exhibit B.
2. Daynamez did not respond by the stated deadline. After that deadline, and before SIC filed this Motion, Daynamez's counsel responded that Daynamez opposes leave, asserting that SIC had already filed a lengthy Motion and sent several communications, that SIC had not specified the additional matters requiring a reply, and that "the rules do not provide for a Reply." Ex. B. Daynamez did not propose any narrowing of the requested relief, and the parties were unable to resolve or further narrow the disagreement. SIC therefore has satisfied Rule 502.71(a), and this Motion is opposed.

II. RELEVANT PROCEDURAL BACKGROUND

3. On July 5, 2026, SIC filed its **Motion to Compel Verified Supplemental Discovery Responses and Complete Document Production**. Dkt. 41. The Motion and its accompanying Statement of Remaining Discovery Deficiencies expressly acknowledged supplementation that adequately cured prior issues and sought relief only as to material deficiencies SIC contended remained.
4. On July 16, 2026, the Presiding Officer extended Daynamez's response deadline to July 20, 2026. **Order on Respondent's Motion for Extension to Respond to Motion to Compel**, Dkt. 44.
5. On July 20, 2026, Daynamez served its **Response to Motion to Compel Including Consolidated, Signed and Verified Supplemental Answers to Complainant's First Set of Interrogatories (Nos. 1–18), Amended Response to Request for Admission No. 12, and Supplemental Responses to Requests for Production ("July 20 Response")**, Dkt. 45.
6. The July 20 Response states that SIC's discovery concerns have been addressed; restates answers to Interrogatory Nos. 1–18; serves an amended response to Request for Admission No. 12; and restates supplemental responses to the Requests for Production at issue. July 20 Resp. at 1–2, 4–46, 47, 48–65. The filing also includes a

consolidated verification and relies on financial schedules and Exhibits A–C. *Id.* at 6, 66–93.

7. The supplementation may resolve discrete formal issues. It also materially changes the record relevant to the pending Motion. By way of example only, Section IV of the July 20 Response retains unresolved drafting instructions offering alternative positions concerning native spreadsheets, source-format communications, a WhatsApp export, a DGS debt notice, a surrendered House Bill of Lading, and website-developer communications, while also stating that production is complete. *Id.* at 65.
8. The July 20 Response also presents or relies upon materially supplemented financial assertions and an amended RFA response that did not exist in their present form when SIC filed the Motion. The Response refers to 81 outgoing wires totaling \$3,538,013.62 and separately to 83 outgoing wire and fund transfers totaling \$3,573,013.62, and its amended response to RFA No. 12 contains both a denial and a conditional explanation concerning possible communications. *Id.* at 6, 47.
9. SIC identifies these examples here only to show why the post-motion submission materially altered the record and why a limited reply would assist the Presiding Officer. The merits of the remaining discovery issues are addressed in the Proposed Limited Reply, not in this Motion for Leave.

III. GOVERNING STANDARD

10. Rule 502.69(e) requires a written motion to state clearly and concisely the purpose and relief sought, the principal authority relied upon, and the facts supporting the requested relief. 46 C.F.R. § 502.69(e). A motion relating to discovery is a non-dispositive motion. *Id.* § 502.69(g).
11. Under Rule 502.71(c), a moving party may not file a reply to a response to a non-dispositive motion unless requested by the Commission or the presiding officer, “or upon a showing of extraordinary circumstances.” 46 C.F.R. § 502.71(c). Rule 502.71(a) separately requires a pre-filing effort to determine whether the anticipated motion is opposed and, if so, to narrow the disagreement. SIC has complied with that requirement as stated above. Daynamez’s conferral assertion that “the rules do not provide for a Reply” does not account for Rule 502.71(c), which expressly permits a reply upon the required showing of extraordinary circumstances. Ex. B.

IV. EXTRAORDINARY CIRCUMSTANCES WARRANT A LIMITED REPLY

A. Daynamez's post-motion submission materially changed the record.

12. SIC does not seek an additional opportunity merely to repeat arguments already presented. The Motion to Compel addressed the discovery record existing on July 5, 2026. Daynamez thereafter submitted a materially different record in opposition by combining: (a) legal argument; (b) an asserted cure through consolidated and verified discovery responses; and (c) additional factual and financial materials offered to show that no further relief is required.
13. The asserted cure is central to disposition of the pending Motion. Without a limited reply, the record would contain Daynamez's post-motion assertion that the identified deficiencies have been resolved, but no focused issue-by-issue explanation from SIC distinguishing completed cures from partial or unresolved matters.
14. That circumstance is extraordinary in the procedural sense relevant here: the response itself introduced or materially reformulated the evidence and discovery responses on which Daynamez asks the Presiding Officer to deny or narrow relief. SIC could not reasonably have anticipated the precise form of Daynamez's asserted post-motion cure, the unresolved alternatives retained in the filed response, or the unreconciled factual and financial presentations submitted with it.

B. The Proposed Limited Reply will assist resolution of the current record.

15. The Proposed Limited Reply candidly acknowledges matters that appear to have been cured, including the formal execution of a consolidated verification for the answers to Interrogatory Nos. 1–18 and the production of a clean, unhighlighted copy of the Agency Agreement. It then separates: (a) completed cures; (b) partial cures; (c) deficiencies that remain or became apparent from the July 20 Response; and (d) the specific compliance relief still requested.
16. That focused presentation will permit the Presiding Officer to evaluate the pending Motion on the record as it now exists, without disregarding Daynamez's supplementation and without treating the service of additional papers, standing alone, as establishing that every requested item of relief is moot.
17. The current Scheduling Order remains in effect. Dkt. 33. Prompt clarification of which responses and productions are operative, which issues have been cured, and what compliance remains necessary will promote orderly completion of discovery and reduce later disputes.

C. The requested reply is narrowly tailored and non-prejudicial.

18. SIC's July 23 conferral email explained that the proposed reply would be limited to matters first presented or materially supplemented in Daynamez's July 20 submission, including the asserted cures, the discovery issues SIC contends remain unresolved, and the specific compliance relief still sought. Ex. B. SIC also submits the exact Proposed Limited Reply as Exhibit A to this Motion so that both the Presiding Officer and Daynamez may evaluate its exact scope. SIC has voluntarily limited the proposed filing to no more than ten pages, excluding any permitted attachment.
19. The Proposed Limited Reply does not:
- reargue matters already fully presented in SIC's opening Motion;
 - serve new discovery requests or expand the requests addressed in Dkt. 41;
 - present a separate merits brief concerning regulated-entity status, contractual liability, arbitration, or ultimate damages;
 - ask the Presiding Officer to determine at this stage that any produced document is fabricated, altered, or inadmissible; or
 - seek terminating sanctions.
20. Daynamez will suffer no unfair prejudice from a concise reply directed to the supplementation and factual material that Daynamez itself elected to place before the Presiding Officer after SIC filed its Motion. Daynamez received notice of the proposed reply's limited subject matter before filing and receives the exact proposed filing with this Motion. The requested procedure instead promotes a complete and accurately framed record while preserving the Presiding Officer's discretion over the scope of any further briefing.

V. CONCLUSION

For the foregoing reasons, SIC respectfully requests that the Presiding Officer grant leave to file the attached Proposed Limited Reply and direct that it be accepted as filed as of the date leave is granted, or alternatively permit SIC to file it within one business day after entry of the order.

Respectfully submitted,

SOUTHERN INTERNATIONAL CO., LTD.



By: _____

Nguyen Tien Phuong

Nguyễn Tiến Phương

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Dated: July 25, 2026

VERIFICATION PURSUANT TO 46 C.F.R. § 502.6(c) AND 28 U.S.C. § 1746

I, Nguyen Tien Phuong, am the Director and duly authorized corporate representative of Southern International Co., Ltd. I have read the foregoing Motion for Leave. The factual statements contained in the Motion concerning the procedural history of the pending Motion to Compel, Daynamez's July 20, 2026 filing and supplementation, and SIC's pre-filing conferral are true and correct based on my personal knowledge and my review of SIC's litigation and service records.

I declare under penalty of perjury under the laws of the United States of America that the foregoing is true and correct.

Executed on July 25, 2026, at Ho Chi Minh City, Vietnam.



By: _____

Nguyen Tien Phuong

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Giám Đốc
Nguyễn Tiến Phương

CERTIFICATE OF SERVICE

I certify that on July 25, 2026, a true and correct copy of the foregoing Complainant Southern International Co., Ltd.'s Motion for Leave to File a Limited Reply to Respondent's July 20, 2026 Response to Motion to Compel, together with Exhibit A (the Proposed Limited Reply) and Exhibit B (the parties' Rule 502.71(a) conferral email chain regarding the anticipated Motion for Leave), was filed by electronic mail with the Secretary of the Federal Maritime Commission, with a courtesy copy to the Office of Administrative Law Judges, and was served by electronic mail upon Respondent's counsel and representative as follows:

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By: _____

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